

Being aggrieved by above judgment and decree of defendant No.1 preferred Family Appeal No.02 of 2023 to the District Judge, Barguna who admitted above appeal but did not stay the operation of impugned judgment and decree.

Being aggrieved by above order of the learned District Judge defendant No.1 as petitioner moved to this court and obtained this rule and an order of stay.

Mr. Md. Shibbir Ahmed learned Advocate for the petitioner submits that since the learned District Judge has admitted the appeal of the petitioner this court can pass a direction upon the learned District Judge, Barguna for expeditious disposal of above appeal on merit.

Ms. Fariha Zaman learned Advocate for the opposite party submits that marital tie between the petitioner and opposite party still exists. The petitioner did not provide any maintenance to the opposite party since 04.03.2021 and she is leading a very miserable life. The learned Advocate lastly submits that the ends of justice will be met if the appeal preferred by the petitioner against the judgment and decree of the Family Court is disposed of within 02 (two) months.

I have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

Undisputedly the marital tie between the petitioner and opposite party still exists and they have two children but in this suit the plaintiff did not seek maintenance for above children. The learned Advocate for the petitioner submits that above children are being maintained by the petitioner and keeping them in his house.

As mentioned above the plaintiff obtained a decree for Tk.4,40,000/- on 01.12.2022 but till date she did not get anything out of above decreetal money. On consideration of above facts and circumstance of the case I find substance in the submissions of the learned Advocates for the respective parties that the ends of justice will be met if above Family Appeal is disposed of expeditiously preferably within a period of 03 (three) months and the operation of the impugned judgment and decree passed by the Family Court remains stayed for above period.

Accordingly I am directing the learned District Judge, Barguna to dispose of Family Appeal No.02 of 2023 within 03 (three) months from the date of receipt of this order and during above period the operation of the

impugned judgment and decree of the Family Court shall remain stayed.

With above direction this rule is disposed of.

Md.Kamrul Islam
Assistant Bench Officer.